

ES1: Ethics and Legality

! Examination

This seminar is mandatory and active participation is required to pass the course!

Seminar Structure

Approximately 5 groups with approximately 4 students each.

Part 1 (45 min)

Group discussions. Each group discuss the scenarios in different orders. Don't rush through all but spend as much time as you think is relevant on each of them.

Part 2 (45 min)

Classroom discussion. Each group present their discussion, interpretation and conclusions.

Discussion order for each group:

- **Grupp 1:** 1, 2, 3, 4, 5, 6
- **Grupp 2:** 2, 3, 4, 5, 6, 1
- **Grupp 3:** 3, 4, 5, 6, 1, 2
- **Grupp 4:** 4, 5, 6, 1, 2, 3
- **Grupp 5:** 5, 6, 1, 2, 3, 4

Instructions

This is not a mathematics exercise. There is no single correct answer to the questions you will discuss.

The purpose of this seminar is to explore tensions between legality, ethics, professional responsibility, organisational constraints, and personal circumstances. Something may be legal yet ethically questionable. Something may be ethically appealing yet unlawful. Your task is to explore these grey areas.

- Work in groups of four.
- For each scenario, each of you must argue from the perspective of one assigned role.
- Assign roles randomly.
- Rotate roles for each new scenario (if you have time to discuss more than one).
- You must argue from your assigned perspective — even if you personally disagree.

The goal is not to “win”, but to understand how different values, pressures, and institutional frameworks shape decision-making.

When relevant, explicitly refer to:

- GDPR and its different parts
- The concept of data controller and processor
- The Freedom of the Press Act (Tryckfrihetsförordningen, TF)
- The Public Access to Information and Secrecy Act (Offentlighets- och sekretesslagen, OSL)

Roles

Justice Warrior

The rule of law is the foundation of society. Laws must be followed strictly, even when inconvenient. You are knowledgeable about legal structures and precise when referring to specific regulations. If an action violates GDPR, OSL, or internal policies, it must not be taken — regardless of good intentions.

Burnout Statistician

You are officially employed for 40 hours per week but regularly work twice that. Deadlines are unrealistic and resources limited. You are exhausted and under personal stress. You want to do the right thing — but you are close to your limits. Practical survival sometimes outweighs ideal compliance.

The Idealistic Reformer

Your primary concern is improving outcomes for patients and society. Bureaucracy can stand in the way of meaningful progress. If rigid compliance prevents real-world benefits, you are willing to challenge procedures. Ethics and impact matter more than formalism.

The Budget Guardian

Public resources are limited. Every action has financial consequences. Legal violations can result in heavy fines, reputational damage, and loss of funding. You focus on long-term sustainability, cost-effectiveness, and institutional risk.

Scenario 1: The Data Receiver

You are participating in consultancy work through Akademistatistik.

A client from the Sahlgrenska Academy (University of Gothenburg) is conducting research where the Västra Götaland Region is the research principal (forskningshuvudman).

After an initial meeting, the client emails you a non-encrypted Excel file. The first column contains Swedish personal identity numbers (personnummer).

Discussion

1. What are your immediate reactions — legally, ethically, and practically?
2. Does the transfer itself constitute a personal data breach under GDPR?
3. What risks are involved (for individuals and institutions)?

Suppose the client used his xxx@gu.se address to send the file.

4. What does this mean in practice? Identify which organisations may now be involved in the incident.
5. Under GDPR, who is likely the data controller? Could there be joint controllership? What role does Akademistatistik have?
6. What obligations arise immediately (documentation, reporting, internal notification)?

You find the following text on the GU intranet:

A personal data breach is a security incident that can involve risks to human rights and freedoms. Everyone at the University of Gothenburg has an obligation to report incidents that they discover to the Data Protection Group. A personal data breach has occurred if, for example, data concerning one or several registered persons have been destroyed, got lost in any other way or made available for unauthorised persons. The risks of a personal data breach can include loss of control over data or the restriction of people's rights. A personal data breach is therefore a security incident that has affected the confidentiality, accuracy or availability of data. A personal data breach may consist of: An unauthorised party has gained access to the personal data, for example by sending personal data to recipients who should not have the data. [...] The University of Gothenburg is responsible for the incidents that occur within the university's activities. The head of the part of the organization where the incident occur must ensure that the incident is reported, managed and assessed. When you discover a suspected personal data breach at the University of Gothenburg, you must report it within the organisation as soon as you become aware of it. You do this by emailing dataskydd@gu.se with a copy to the closest superior college. The Data Protection Group will then initiate documentation and assessment of the breach. It is very important that any incident is reported swiftly, as serious breaches must be reported to the Swedish Authority for Privacy Protection (IMY) within 72 hours of the incident being discovered. The 72 hours is the time that the Data Protection Group and the Data Protection Officer have to make their assessment of the incident.

7. What do you do now – concretely and immediately?

Instead, imagine that the researcher used `xxx@vgregion.se`.

8. Would that change anything? Consider controller responsibility, breach notification, and organisational accountability.

Later, at a restaurant, you mention receiving the file. A person nearby asks you to share the data. You refuse. He claims that since you work for a public authority, the Freedom of the Press Act (TF) gives him the right to access the document immediately.

9. What is your response?
 - Is the Excel file a public document?
 - Does secrecy under OSL apply?
 - Who decides on disclosure?

Scenario 2: Working with Data Across Borders

You are hired remotely by a company in Moldova. You have not yet received a work computer. Sometimes you work from cafés or libraries.

The company has a Swedish client who is the data controller. You download their data from an encrypted server connection.

Discussion

1. Before starting work, what technical and organisational safeguards must be in place?

Suddenly, the client realises that no Data Processing Agreement (DPA) exists between them and your employer.

Your boss says: “Not my problem. GDPR does not apply to me.”

2. Is that correct?
3. What is your professional responsibility?
4. Do you continue working?

Scenario 3: Secure Environment

You must work in a restricted remote server environment.

You cannot install packages outside CRAN.

You cannot copy text or files.

The client can access the report directly on the server.

You urgently need a GitHub package not available on CRAN. You discover a technical workaround to install it despite restrictions.

1. Do you use the workaround? Why or why not?
2. Is bypassing IT restrictions merely a policy violation — or potentially a legal issue?

Later, you discover you can activate AI tools externally to assist your analysis. You are severely sleep deprived and under pressure.

3. Do you use AI tools?
4. Could this involve unlawful data transfer outside the EU?
5. How do exhaustion and working conditions affect ethical responsibility?

Scenario 4: The Accident

You work for a national quality register of joint replacements. Late one evening, a hospital calls you:

“We have a severely injured patient. His face is unrecognisable, and he is unconscious. We cannot identify him. However, his hip prosthesis is exposed and we have located the serial number. If we can identify him and access his medical history, we may be able to save his life.”

The hospital asks whether you can use the register to identify the patient based on the prosthesis serial number and provide identifying information.

Discussion

1. Are you legally allowed to disclose identifying information?
2. What is the original purpose of the register, and does this situation fall within that purpose?
3. If not, is it still possible to provide the information?
4. When, if ever, should privacy yield to immediate medical necessity?
5. Would you make the same decision at 10 a.m. on a weekday as at 2 a.m. when you are alone?

Variation

Imagine that: - The patient survives regardless of your decision. - Later, relatives question how the hospital obtained identifying information. - Media becomes aware of the incident.

Does this change your reasoning in retrospect?

Scenario 5: The Role Model

You are relatively new at your workplace. A senior colleague has taken you under his wing, helped you understand internal systems, and supported you in difficult projects. This colleague is widely respected, seen as highly competent, and something of a role model in the organisation.

One evening, you are working late. While navigating a shared network folder for a project, you come across several script files. Out of curiosity — and because the file names seem related to a database you recognise — you open them.

The scripts clearly show that your colleague has performed a data extraction containing names, personal identity numbers, and addresses for all individuals living on the same street as him.

There is no obvious documentation justifying the query.

Discussion

1. What are your immediate reactions?
2. Does this appear to constitute:
 - Unlawful processing under GDPR (lack of legal basis, purpose limitation)?
 - A personal data breach?
 - Possible misconduct or even a criminal offence (e.g. breach of confidentiality)?
3. Does it matter whether the data was merely accessed, or also exported and used?
4. What risks arise for:
 - The affected individuals?
 - The organisation?
 - You?

Further Considerations

5. Do you confront your colleague?
6. Do you report the incident internally? If so, to whom?
7. Are you yourself at risk if you ignore what you have seen?

8. How does the power imbalance (junior vs senior) affect your responsibility?

Scenario 6: Contacting Children from a Quality Register

You are the head of a unit responsible for a national quality register for children born with cleft lip and/or palate.

You receive a formal data access request. The researcher has an approved ethical review decision from the Swedish Ethical Review Authority (Etikprövningsmyndigheten).

The researcher requests access to identifiable personal data (names, personal identity numbers, and contact information) for children living in Western Sweden. The stated purpose is to contact the children and their guardians directly to invite them to participate in a new research project involving follow-up questionnaires and interviews.

Discussion

1. Does the purpose of the quality register allow this type of secondary use?
2. Does an approved ethical review automatically mean that the data may be disclosed?
3. Does the age of the children matter (minor vs adult at time of contact)?
4. What are the ethical implications of contacting families about a condition that may carry psychological or social sensitivity?
5. Does secrecy under the Public Access to Information and Secrecy Act (OSL) apply?
6. Are there any personal risks for you if you accept to give the researcher the data?
7. Will you accept or decline the request?

Variation

Imagine that: - The researcher is well-known and highly respected. - The project has strong potential to improve long-term care. - The researcher argues that obtaining consent indirectly will drastically reduce participation rates.

Does this change your decision?

Final Plenary Reflection

- When did legality and ethics diverge most clearly?
- Which role was hardest to argue from?
- Did your personal opinion change during discussion?